

PLUGANDPLAY

GS1 US Inc

Ecosystem Corporate Membership
Agreement
Supply Chain
Plug and Play Northwest Arkansas

This Corporate Membership Agreement (“Agreement”) is made effective as of February 24, 2025 (“Effective Date”), by and between GS1 US Inc., whose principal office is located at 300 Charles Ewing Boulevard, Ewing, NJ 08628 and Plug & Play, LLC (also doing business as “Plug and Play Tech Center”) whose principal office is located at 440 N Wolfe Rd., Sunnyvale, CA 94085 (hereinafter “Plug and Play”). Plug and Play and CLIENT hereinafter jointly referred to as the “Parties” and individually to as the “Party.”

1. The Scope of the Agreement

1.1. CLIENT is seeking engagement with Plug and Play to drive business growth opportunities for CLIENT through partnership, pilots, acquisition, or investment in startups and establish CLIENT as an innovation leader in the Supply Chain space. To ensure CLIENT’s success as a strategic member of Plug and Play’s ecosystem, Plug and Play will provide the services described in this Agreement.

1.2. Ecosystem Membership—Plug and Play Supply Chain

1.2.1. The execution of the Agreement will grant CLIENT a status of “Ecosystem Member” of Supply Chain at Plug and Play Northwest Arkansas.

1.2.2. As an Ecosystem Member, CLIENT will pay the fees described in **Exhibit A** and benefit from the services listed in Section 2.

2. Ecosystem Benefits—Plug and Play Supply Chain

Plug and Play accelerates up to two batches of startups per year (each, a "Batch") and provides workshops, mentorship sessions, EXPOs, business development, and investment opportunities to CLIENT in the Supply Chain industry (the "Program"). As an Ecosystem Member, CLIENT will receive the following:

2.1. Sourcing and Startup Introductions

2.1.1. Dealflow Sessions: Plug and Play will facilitate introductions between CLIENT and startups based on CLIENT's business challenges. These connections are made through "Dealflow Sessions"—up to four per Segment. Dealflow Sessions are structured as follows:

- a)** CLIENT shall provide Plug and Play notice of its intention to participate in a Dealflow Session. Plug and Play will, within four weeks of receipt of such notice, deliver a pre-screened list of startups to CLIENT and allow CLIENT to select up to eight startups it wishes to meet. Of the eight startups chosen by CLIENT, Plug and Play will arrange for CLIENT to meet (virtually or in-person) up to four startups during the Dealflow Session.

- b) At the Dealflow Session, each of the selected startups will present to CLIENT, followed by open discussions between the selected startups and CLIENT.
 - c) If CLIENT or any of its employees, contractors or representatives are unable to attend the Dealflow Session in person, Plug and Play will arrange a virtual or extended Dealflow Session to accommodate CLIENT's schedule.
- 2.1.2. Ad-Hoc Introductions: Plug and Play will make ad-hoc introductions between CLIENT and startups as new opportunities arise during the Term (defined in Exhibit A: Fee Schedule).
- 2.1.3. Playbook: During the Term, CLIENT may access Plug and Play's proprietary virtual platform called "Playbook". Playbook allows corporate members to easily track engagement with startups and includes a database of startup profiles, exclusively for Plug and Play's corporate members' use. CLIENT's representatives that wish to use Playbook must first create a profile on the Playbook platform.
- 2.2. Trend Reports: Plug and Play will prepare up to four reports per Segment for CLIENT each focused on a specific topic selected by CLIENT (each, a "Trend Report"). Plug and Play shall organize the Trend Report as follows:
 - 2.2.1. CLIENT will provide Plug and Play with notice six weeks prior to its desired Trend Report. CLIENT shall choose a topic for the Trend Report and Plug and Play will host a briefing session related to the selected topic to determine the scope of the Trend Report.
 - 2.2.2. Plug and Play will research the selected topic and prepare a presentation that may include, but not be limited to, a high-level summary, market statistics, areas of growth, and the likelihood of cooperation with startups within the topic.
- 2.3. EXPOs: "EXPO" takes place at the conclusion of each Batch, either in person or virtually. Each EXPO includes three-minute presentations from the startups in each Batch, panelist discussions and keynote speeches focused on the Batch. Attendees of each EXPO includes entrepreneurs, venture capitalists, Plug and Play corporate

members, developers, investors, government entities, and universities. CLIENT may send representatives to attend EXPO.

2.4. Events & Workshops

CLIENT's representatives are invited to participate and promote CLIENT's brand and products at all Supply Chain events and workshops. Plug and Play will provide:

- 2.4.1. Community Events:** During the Term, Plug and Play will host events to build community within the innovation ecosystem focused on exposure between members of the Program, members of other programs, and startups. CLIENT may attend any community event during the Term.
- 2.4.2. Internal Events:** Plug and Play will invite CLIENT to regular internal events during the Term, including, but not limited to, workshops, conferences, and roundtable discussions in the Supply Chain industry. Plug and Play may invite CLIENT to internal events relating to other industries in Plug and Play's sole discretion.
- 2.4.3. Friday Pitch Sessions:** The Friday Pitch Sessions ("FPS") provide a platform for startups to interact with corporate executives, serial entrepreneurs, and investors at the Silicon Valley location every Friday. The four weekly, themed FPS meetings include: Money tech, Hard tech, Health tech, Software tech. CLIENT may attend any FPS either virtually or in-person.

2.5. Community, Branding, and Marketing

- 2.5.1. Public Relations:** CLIENT and Plug and Play will work together to submit a press release announcing the collaboration. Additionally, this collaboration will be promoted at Plug and Play's events and in event materials, including, but not limited to, event room screens, event programs, and pop-up banners, as reviewed and approved to in writing and in advance by CLIENT. CLIENT shall approve, in writing and in advance, any press releases, promotions, public statements referring to CLIENT and/or this collaboration.
- 2.5.2. Branding in Silicon Valley:** A CLIENT placard will be positioned on Plug and Play's strategic member wall at its Silicon Valley headquarters. Plug and Play will also note CLIENT as a member on its website, as reviewed and approved to in writing and in advance by CLIENT.

3. Authorization for use of Name, Trademark(s), Logo(s) and other Identifying Marks

- 3.1.** Plug and Play shall not use CLIENT's logo and trademarks (the "Marks") in any way unless Plug and Play obtains CLIENT's prior written permission. Plug and Play will use the Marks in accordance with CLIENT's guidelines. The request for permission and the grant of permission may be delivered and received via email or other forms of electronic communication. CLIENT shall retain all and any intellectual property rights, title or interest in or to any of the Marks used by Plug and Play.
- 3.2.** CLIENT may use and publish Plug and Play's name, logo and trademarks ("Plug and Play Marks") in its marketing and promotional material with Plug and Play's prior written consent. For the avoidance of doubt, Plug and Play shall retain all and any intellectual property rights, title or interest in or to any of the Plug and Play Marks used by CLIENT.

4. Intellectual Property

- 4.1.** Plug and Play shall own no right, title and interest in and to all intellectual property created by CLIENT, including between CLIENT and any technology startup company introduced to CLIENT, through the services provided by Plug and Play in connection with this Agreement, including without limitation, all logos, trademarks, names, ideas, concepts, creative materials, promotional materials, advertising, and graphics, including all copyrights and proprietary rights therein, and any inventions and discoveries first conceived or developed, whether or not protected by patent, trade secret or copyright.
- 4.2.** If Plug and Play and CLIENT desire to develop jointly any intellectual property during the Term, then the Parties shall execute a separate development agreement prior to starting any such development. The development agreement shall include, among other things, the Parties' mutual understanding about ownership of any developments.

5. Confidentiality

- 5.1.** Prior to and during the Term, the Parties will be exposed to certain valuable confidential information that each deems confidential (hereafter the "Confidential Information"). This Confidential Information includes, but is not limited to, trade secrets, processes, reports, studies, statistics, writings, documents, files, procedures, business plans, marketing plans, business records, financial information, methods and techniques, customer and client lists, business contact lists, intellectual property, and any and all information related to each Parties respective business. For the avoidance of doubt, Confidential Information also includes the terms of this and any other agreement Client has with Plug and Play. The Parties understand that each has invested substantial effort into developing this

Confidential Information. Because unauthorized disclosure of the Confidential Information would irreparably damage the Parties, each agree to keep any Confidential Information confidential and only use Confidential Information in furtherance of this Agreement. Parties agree that they shall not disclose (except to employees or representatives of a Party who have a need to know such information), market, develop, or cause to be marketed the other Party's Confidential Information without prior written consent. Business decision and discussions regarding the internal business matters of Plug and Play and CLIENT are confidential and not public information. This confidentiality provision shall survive the expiration or earlier termination of this Agreement and shall continue for a period of three (3) years.

5.2. The obligations set forth in the section above shall not apply to any Confidential Information with respect to which each Party can demonstrate:

5.2.1. was in its possession prior to the time of disclosure by the disclosing Party hereunder and was not acquired directly or indirectly from the other Party

5.2.2. was in the public domain at the time of disclosure, or subsequently became part of the public domain through no fault of the receiving Party; or

5.2.3. was legally received from a third party who represents in writing that it was not subject to a confidentiality agreement regarding the information.

5.3. All Confidential Information disclosed by the disclosing Party under this Agreement, whether in a tangible form (including, without limitation, information incorporated in computer software or held in electronic storage media) or during all and any oral communication, shall be and remain property of the disclosing Party.

6. Indemnity

Each Party shall defend, indemnify and hold harmless the other Party, its parents, affiliates, and each of their respective directors, officers, employees, shareholders and all of their respective successors and permitted assigns (the "Indemnified Parties"), from and against any and all suits, claims, actions, liabilities, losses, damages, costs and expenses (including, but not limited to, interest, penalties, reasonable attorneys' fees and other expenses of litigation) and causes of action of whatsoever kind (collectively referred to as "Claims") which may be incurred by, asserted against, or recoverable from any Indemnified Party arising out of or relating to any of the Services performed or accepted by each Party under this Agreement.

7. Limitation of Liability

The liability for either Party under this Agreement shall be limited to the total amount of fees paid during the preceeding Segment by Client to Plug and Play and in no event shall

either Party be liable to the other Party for any special, incidental, punitive, or consequential damages.

8. Term and Billing

See **Exhibit A: Fee Schedule** attached to and incorporated in this Agreement for details.

9. Relationship of the Parties

Neither Party is, nor represents itself to be, an agent, employee, partner or joint venture of the other Party. Neither Party shall, unless otherwise specified in this Agreement or in a writing signed by both Parties, make promises, representations or warranties that incur any liability for or on behalf of the other Party. The relationship of the Parties is non-exclusive unless otherwise specifically agreed to in writing by the Parties.

10. Notices

Any notices given under this Agreement shall be in writing to the following addresses:

Plug & Play, LLC

GS1 US Inc.

Attention:

Address: 440 N Wolfe Rd.,
Sunnyvale, CA 94085

Email:

Attention:

Address: 300 Charles Ewing
Boulevard, Ewing, NJ 08628

Email:

11. Severability

If any provision of this Agreement shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court or judicial authority finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited but only to the minimal extent required to make the provision valid and enforceable.

12. Entire Agreement

This Agreement, together with all Exhibits referenced herein (a) constitutes the entire Agreement between the Parties regarding this specific subject matter; (b) is the complete and exclusive statement of the terms thereof; and (c) it supersedes all prior oral or written agreements between the Parties with respect to this specific subject matter. Any modifications to the terms of this Agreement must be in writing and signed by an authorized representative of each Party.

13. Force Majeure

Neither Party shall be liable for any delays in performance hereunder due to circumstances beyond its control including, but not limited to, acts of nature, acts of governments, delays in transportation, and delays in delivery or inability of suppliers to deliver. CLIENT shall have the option to terminate any and all obligations under this Agreement by so notifying Plug and Play in writing if the delay in performance exceeds 30 days from the originally agreed upon performance date.

14. Choice of Law

This Agreement shall be interpreted and enforced according to the applicable federal laws of United States of America and the state laws of Delaware without application of its conflict of law or choice of law rules.

15. Assignment

This Agreement shall bind and be for the benefit of the Parties and their heirs, fiduciaries, and permitted successors and assigns. Neither Party may assign its rights or delegate its obligations under this Agreement, except to a present or future affiliate upon written notice to the other Party.

16. Representations and Warranties

16.1 The Parties executing this Agreement on behalf of Plug and Play and CLIENT represent and warrant that they have the authority from their respective governing bodies to enter into this Agreement and to bind their respective companies to all the terms and Conditions of this Agreement.

16.2 Plug and Play represents, warrants and covenants to CLIENT: (i) that it will perform its obligations under this Agreement with reasonable skill and care, in a manner consistent with industry standards and in compliance with all applicable laws, rules and regulation; (ii) its product(s), services and performance in connection with this Agreement will comply with all applicable federal, state, and local laws and regulations; and (iii) it has all licenses, agreements, permits, registration and authorizations required to conduct its obligations as required hereunder.

17. Other

Neither Party's failure to insist upon strict performance of any provision of this Agreement will be construed as a waiver of any of its rights hereunder. This Agreement may be signed in counterparts, which together shall be one contract. Faxed or scanned signatures will be treated as original.

(Signature page follows)

Acknowledged, Accepted and Agreed:

Plug & Play, LLC

Represented by:

josh saffran
josh saffran (Feb 24, 2025 10:27 CST)

Name: josh saffran

Title: Director

Date: Feb 24, 2025

GS1 US Inc.

Represented by:

Michelle Covey
Michelle Covey (Feb 24, 2025 08:33 PST)

Name: Michelle Covey

Title: VP, Customer Success

Date: Feb 24, 2025

Exhibit A: Fee Schedule

Description of Work	Segment Amount	Segment Term
Ecosystem Membership (Supply Chain) - Segment 1	\$200,000.00	Start Date: February 24, 2025 End Date: February 23, 2026
Ecosystem Membership (Supply Chain) - Segment 2	\$200,000.00	Start Date: February 24, 2026 End Date: February 23, 2027
Ecosystem Membership (Supply Chain) - Segment 3	\$200,000.00	Start Date: February 24, 2027 End Date: February 23, 2028

Term, Billing, and Tax:

The term of this Agreement shall commence on the Effective Date and shall continue until February 23, 2026 (the “Term”). Each 12-month period of the Term commencing on February 24th is a “Segment.” Client may terminate this Agreement effective at the end of each Segment by providing Plug and Play with written notice of its intent to terminate no later than 60 days prior to the end of the then-current Segment. Early termination of this Agreement by Client shall not entitle Client to any refund of fees previously paid nor shall it release Client from the obligation to pay fees that were incurred pursuant to the Fee Schedule above but remain unpaid as of the effective date of Client’s early termination.

Plug and Play will invoice CLIENT on the first date of each Segment listed above, in the amount designated for that Segment. Payments made under this Agreement are made in advance and are not refundable. CLIENT shall pay Plug and Play no later than 30 days after receipt of an invoice from Plug and Play. Failure of CLIENT to pay any amount when due may result in a late penalty commencing on the due date of such payment until the date paid at a rate of 1.5% per month (18% per annum), or the maximum amount allowed by law, whichever is less.

All amounts payable under the Agreement are exclusive of any taxes or other government charges incurred by Plug and Play as a result of provision of the services to CLIENT pursuant to the Agreement. CLIENT will pay any and all (a) sales, use, excise or other taxes (other than taxes measured on the income of Plug and Play) and (b) regulatory fees or surcharges of all governmental authorities, applicable to the services provided to CLIENT under this Agreement.

Signature: Josh Saffran
Josh Saffran (Feb 24, 2025 10:27 CST)

Email: j.saffran@pnptc.com

Title: Director

Company: Plug and Play Tech Center

Signature: Michelle Covey
Michelle Covey (Feb 24, 2025 08:33 PST)

Email: mcovey@gs1us.org

Title: VP, Customer Success

Company: GS1 US